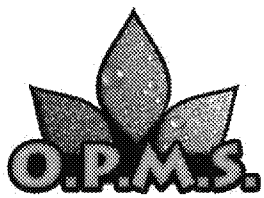
EXHIBIT 3

Generated on: This page was generated by TSDR on 2024-07-10 11:22:12 EDT

Mark: O.P.M.S.



US Serial Number:	88444263	**Application Filing Date:**	May 23, 2019
US Registration Number:	5942734	**Registration Date:**	Dec. 24, 2019
Filed as TEAS RF:	Yes	**Currently TEAS RF:**	Yes
Register:	Principal		
Mark Type:	Trademark		
TM5 Common Status Descriptor:	LIVE/REGISTRATION/Issued and Active The trademark application has been registered with the Office.		

Status: Registered. The registration date is used to determine when post-registration maintenance documents are due.

Status Date: Dec. 24, 2019

Publication Date: Oct. 08, 2019

Mark Information

Mark Literal Elements: O.P.M.S.

Standard Character Claim: No

Mark Drawing Type: 3 - AN ILLUSTRATION DRAWING WHICH INCLUDES WORD(S)/ LETTER(S) /NUMBER(S)

Description of Mark: The mark consists of three stylized leaves positioned next to one another. The leaf on the left and the leaf on the right are arranged at a diagonal angle facing outward. The leaf at the center is vertical. Each leaf has multiple water drops of varying sizes on it. Below the three leaves is the stylized wording "O.P.M.S." where the periods in between the lettering "O", "P", "M", and "S" are stylized as squares.

Color(s) Claimed: Color is not claimed as a feature of the mark.

Design Search Code(s): 01.15.18 - More than one drop including teardrops or raindrops; Raindrops (more than a single drop); Teardrops (more than a single drop); multiple drops (rain, tear, etc.)
05.03.08 - More than one leaf, including scattered leaves, bunches of leaves not attached to branches
26.09.02 - Plain single line squares; Squares, plain single line
26.09.14 - Squares, three or more; Three or more squares

Goods and Services

Note:
The following symbols indicate that the registrant/owner has amended the goods/services:

- Brackets [..] indicate deleted goods/services;
- Double parenthesis ((..)) identify any goods/services not claimed in a Section 15 affidavit of incontestability; and
- Asterisks *..* identify additional (new) wording in the goods/services.

For: Nutritional and dietary supplements; herbal supplements

International Class(es):	005 - Primary Class	**U.S Class(es):**	006, 018, 044, 046, 051, 052
Class Status:	ACTIVE		
Basis:	1(a)		

First Use: Jan. 01, 2012 **Use in Commerce:** Jan. 01, 2012

Basis Information (Case Level)

Filed Use:	Yes	**Currently Use:**	Yes
Filed ITU:	No	**Currently ITU:**	No
Filed 44D:	No	**Currently 44D:**	No
Filed 44E:	No	**Currently 44E:**	No
Filed 66A:	No	**Currently 66A:**	No
Filed No Basis:	No	**Currently No Basis:**	No

Current Owner(s) Information

Owner Name: Martian Sales, Inc.

Owner Address: 109 East 17th Street, Suite 4292
Cheyenne, WYOMING UNITED STATES 82001

Legal Entity Type: CORPORATION **State or Country Where Organized:** WYOMING

Attorney/Correspondence Information

Attorney of Record

Attorney Name: Lawrence K. Nodine **Docket Number:** 37708.1006US

Attorney Primary Email Address: tmdocketing@ballardspahr.com **Attorney Email Authorized:** Yes

Correspondent

Correspondent Name/Address: LAWRENCE K. NODINE
BALLARD SPAHR LLP
999 PEACHTREE STREET, NE, SUITE 1000
ATLANTA, GEORGIA UNITED STATES 30309-3915

Phone: 678-420-9300 **Fax:** 678-420-9301

Correspondent e-mail: tmdocketing@ballardspahr.com **Correspondent e-mail Authorized:** Yes

Domestic Representative - Not Found

Prosecution History

Date	Description	Proceeding Number
Dec. 24, 2019	REGISTERED-PRINCIPAL REGISTER	
Oct. 08, 2019	OFFICIAL GAZETTE PUBLICATION CONFIRMATION E-MAILED	
Oct. 08, 2019	PUBLISHED FOR OPPOSITION	
Sep. 18, 2019	NOTIFICATION OF NOTICE OF PUBLICATION E-MAILED	
Sep. 02, 2019	ASSIGNED TO LIE	
Aug. 23, 2019	APPROVED FOR PUB - PRINCIPAL REGISTER	
Aug. 16, 2019	EXAMINER'S AMENDMENT ENTERED	
Aug. 16, 2019	NOTIFICATION OF EXAMINERS AMENDMENT E-MAILED	
Aug. 16, 2019	EXAMINERS AMENDMENT E-MAILED	
Aug. 16, 2019	EXAMINERS AMENDMENT -WRITTEN	
Aug. 10, 2019	ASSIGNED TO EXAMINER	
Jun. 11, 2019	NOTICE OF DESIGN SEARCH CODE E-MAILED	
Jun. 08, 2019	NEW APPLICATION OFFICE SUPPLIED DATA ENTERED	
May 27, 2019	NEW APPLICATION ENTERED	

TM Staff and Location Information

TM Staff Information - None

File Location

Current Location: PUBLICATION AND ISSUE SECTION **Date in Location:** Dec. 24, 2019

United States of America

United States Patent and Trademark Office



Reg. No. 5,942,734

Registered Dec. 24, 2019

Int. Cl.: 5

Trademark

Principal Register

Martian Sales, Inc. (WYOMING CORPORATION)
109 East 17th Street, Suite 4292
Cheyenne, WYOMING 82001

CLASS 5: Nutritional and dietary supplements; herbal supplements

FIRST USE 1-1-2012; IN COMMERCE 1-1-2012

The mark consists of three stylized leaves positioned next to one another. The leaf on the left and the leaf on the right are arranged at a diagonal angle facing outward. The leaf at the center is vertical. Each leaf has multiple water drops of varying sizes on it. Below the three leaves is the stylized wording "O.P.M.S." where the periods in between the lettering "O", "P", "M", and "S" are stylized as squares.

SER. NO. 88-444,263, FILED 05-23-2019

Director of the United States
Patent and Trademark Office